

HOUSE BILL 133

By Raper

AN ACT to amend Tennessee Code Annotated, Title 33
and Title 52, relative to facilities for persons with
disabilities.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 52-2-418(d)(1), is amended by
deleting the second sentence and substituting:

One (1) pilot participant must be located in the western grand division, as
described in § 4-1-204, one (1) pilot participant must be located in the middle
grand division, as described in § 4-1-203, and one (1) pilot participant must be
located in the eastern grand division, as described in § 4-1-202.

SECTION 2. Tennessee Code Annotated, Section 52-2-418(d)(3), is amended by
adding the following new subdivision (C):

(C) To be eligible to participate in the pilot program in the eastern grand division,
a participant must:

(i) Possess a license issued by the department to operate an existing
residential home, which must be located on property:

(a) In a county with a population of not less than one hundred
eight thousand six hundred (108,600) and not more than one hundred
eight thousand seven hundred (108,700), according to the 2020 federal
census or a subsequent federal census;

(b) Owned by the participant; and

(c) That consists of no less than twenty-six (26) acres, which may include adjacent properties on which adults reside in an existing independent living, licensed assisted-care living, or licensed nursing home community;

(ii) Offer residential services for no more than sixty (60) additional adults with intellectual and developmental disabilities;

(iii) Foster an inclusive community by making available additional homes on the property for adults of all abilities equal to twenty-five percent (25%) of homes on the property; and

(iv) Be recognized by the internal revenue service as an entity that is tax exempt pursuant to § 501(c)(3) of the Internal Revenue Code (26 U.S.C. § 501(c)(3)), as amended.

SECTION 3. Tennessee Code Annotated, Section 52-2-418(d)(4)(A)(iv), is amended by deleting the subdivision and substituting:

(iv) Each bedroom contains, is adjacent to, or across the hallway from, a full bathroom facility;

SECTION 4. Tennessee Code Annotated, Section 52-2-418(d)(5), is amended by deleting the subdivision and substituting:

(A) The department shall accept applications for participation in a pilot program:

(i) Authorized under subdivision (d)(3)(A) or (B) beginning July 1, 2024.

Applications must be received on or before March 31, 2025; and

(ii) Authorized under subdivision (d)(3)(C) beginning July 1, 2025.

Applications must be received on or before March 31, 2026.

(B) The department shall approve an application for participation in the pilot program that satisfies the requirements of subdivisions (d)(2)-(4) within thirty (30) days

of receipt of the application. If an applicant proposes to build facilities in order to participate in the pilot program, then the applicant must complete the facilities necessary to participate in the pilot program on or before June 30, 2028. All pilot participants shall comply with the applicable requirements for licensure for services or facilities, as the case may be, prior to accepting residents.

SECTION 5. Tennessee Code Annotated, Section 52-2-418(d)(7), is amended by adding the following sentence at the end of the subdivision:

The department is not required to report outcomes for a participant under the pilot program qualified and approved under subdivision (d)(3)(C) for a reporting year until such participant's facility is operational.

SECTION 6. Tennessee Code Annotated, Section 52-2-418(d)(8), is amended by deleting all language before the colon and substituting:

It being the intent of the general assembly that there be one (1) pilot program participant in the western grand division, one (1) pilot program participant in the middle grand division, and one (1) pilot program participant in the eastern grand division, the department shall not

SECTION 7. This act takes effect July 1, 2025, the public welfare requiring it.